

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index No:
Date Filed:

-----X
A.U. (an infant under the age of 18 years old), by his father
and natural guardian, ANSELM UDECHUCK,

Plaintiff,

Plaintiff designates
RICHMOND COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK,

Defendant.

-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
January 8, 2020

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X Index No.
A.U. (an infant under the age of 18 years old), by his father
and natural guardian, ANSELM UDECHUCK,

Plaintiff,

-against- COMPLAINT

THE CITY OF NEW YORK,

Defendant.
-----X

A.U. (an infant under the age of 18 years old), by his father
and natural guardian, ANSELM UDECHUCK (hereinafter "plaintiff"), by his attorney(s)
THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendant THE
CITY OF NEW YORK, (referred to as "the defendant"), upon information and well
founded belief, alleges as follows:

NATURE OF THE ACTION

- 1. This is an action at law that sounds in the intentional torts of false arrest/false imprisonment.

THE PARTIES

- 2. Plaintiff ANSELM UDECHUCK is an African-American male of full age, and the father and natural guardian of the infant, A.U.
- 3. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of a certain non-party police officer, namely POLICE OFFICER CRAIG LUPARDO (Tax # 650790; Shield # 7830) (hereinafter “Lupardo”), through its Police Department, namely the New York City Police Department ("NYPD"), and the actions of Lupardo complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

4. At the time of the incident complained of herein, the above-referenced non-party police officer was in the course of his duties. As such, the City is responsible for the above-referenced non-party police officer's actions, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

5. All conditions precedent to filing of this action have been complied with; on March 18, 2019, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2019PI0007687.
6. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
7. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

8. On or about February 7, 2019 at approximately 04:00 p.m., at a bus stop located at the corner of Bay Street and Stuyvesant Place, in Staten Island, New York (subject location), as he was waiting for a bus to go home, the infant was falsely arrested by Lupardo.
9. Following his arrest, the infant was placed in handcuffs and transported to the 120th precinct. Upon arrival at the 120th precinct, the infant was processed, or otherwise fingerprinted and photographed.
10. The infant was thereafter transported to "Central Booking", situated within the Richmond County Criminal Courthouse building located at

26 Central Avenue, Staten Island, New York 10301, where, once again, he was processed.

11. The infant was arraigned before a Criminal Court Judge at approximately 04:00 p.m. on February 8, 2019, and charged with the following offenses:
 - a. Obstructing Governmental Administration in the 2nd Degree [P.L. 195.05];
 - b. Unlawful Assembly [P.L. 240.10]; and
 - c. Disorderly Conduct [P.L. 240.20(6)].
12. The criminal complaint was signed by Lupardo, who stated therein *inter alia*, that he had observed the infant yelling and screaming for people to gather and watch a fight in front of 1 Richmond Terrace at 15:20 p.m.; that he had observed the infant yelling and screaming for people to gather and watch a fight in front of 10 Richmond Terrace at 15:40 p.m.; and that he had observed the infant yelling and screaming for people to gather and watch a fight at the corner of Bay Street and Stuyvesant Street at 16:00 p.m.
13. In fact, all of the above-referenced allegations by Lupardo were false and untrue.
14. Upon arraignment the infant pleaded “not guilty” and was released upon his own recognizance.
15. The criminal case instituted against the infant by Lupardo was eventually adjourned in contemplation of dismissal, and thereafter dismissed.
16. The criminal court docket number is “CR-000872-19RI”.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
NEW YORK STATE LAW

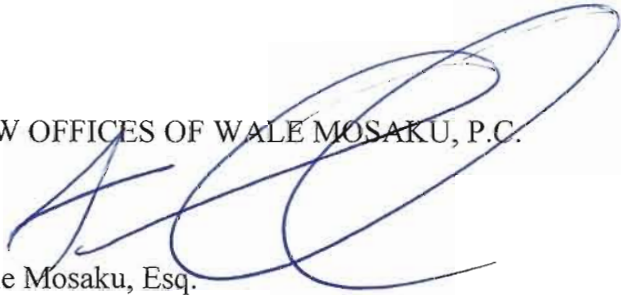
17. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 16 of this complaint as though fully set forth herein.

18. The above-described respective arrest, detention and imprisonment of the infant by Lupardo were without just or probable cause, and without any warrant or legal process directing or authorizing the infant's arrest or subsequent detention.
19. As a result of infant's above-described false arrest and detention by Lupardo, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
20. Lupardo was at all material times acting within the scope of his employment, and as such, the defendant City is vicariously liable for Lupardo's unlawful acts towards the infant as described above.
21. Consequently, the infant has been damaged and hereby demands compensatory damages in an amount to be proven at trial against the defendant.

WHEREFORE, plaintiff prays for judgment against the defendant, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including his reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
January 8, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku, Esq.
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X Index No.

A.U. (an infant under the age of 18 years old), by his father
and natural guardian, ANSELM UDECHUCK,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK,

Defendant.

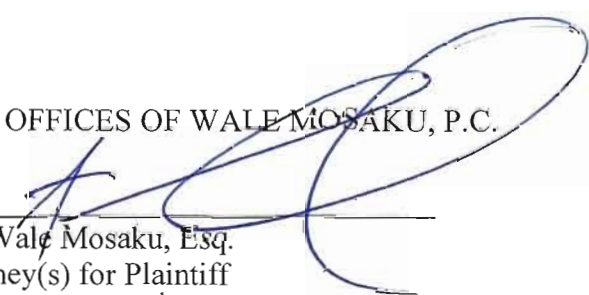
-----X

The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
January 8, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

BY:  Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994